Louisa County Water Authority
Board of Directors
October 11, 2023

MEMBERS PRESENT: Mr. Judson Foster, Chairman; Mr. Douglas Smith, Vice-Chairman; Mr. Bob Hardy; Mr. Byron Wilson; Mr. Robert Morgan

MEMBERS ABSENT: Mr. David Kies; Mr. Tom Filer

OTHERS PRESENT: Ms. Pam Baughman, General Manager; Mr. Hunter Martin, Water Operations Manager; Mr. Andy Wade, Economic Development Director; Mr. Kyle Eldridge, Assistant County Attorney

A. Call to Order

Mr. Foster called the meeting to order at 6:00 pm.

1. ADOPTION OF THE AGENDA

Mr. Foster asked if there were any additions or changes to the agenda. The General Manager asked to add two Short Notice items 1) Zion Crossroads mixer replacement and 2) Banking Services. Mr. Hardy made a motion to approve the agenda as amended. The motion was seconded by Mr. Smith and carried 5-0 among the members present.

B. Closed Session

2. Closed Session pursuant to Va. Code Section 2.2-3711(A)(5) to discuss a prospective business in the Cuckoo District and the Mineral District where no previous announcement has been made of the business's interest in locating in the County.

3 Closed Session pursuant to Va. Code Section 2.2-3711(A)(7) consultation with legal counsel and briefings by staff members or consultants pertaining to actual or probable litigation, where such consultation or briefing in open meeting would adversely affect the negotiating or litigating posture of the public body.

4. Pursuant to Va. Code Section 2.2-3711(A)(7)(8) and (29) to consult with legal counsel and staff about the assignment of a contract involving property in the Green Springs District, where discussion in an open session would adversely affect the bargaining position or negotiating strategy of the County.

Mr. Hardy made a motion to close the regular open meeting and immediately reconvene in executive closed session for the discussion of a prospective business in the Cuckoo District and the Mineral District where no previous announcement has been made of the business's intent in locating to the County; consultation with legal counsel and briefings by staff members or consultants pertaining to actual or probable litigation, where such consultation or briefing in open meeting would adversely affect the negotiating or litigation posture of the public body; and to consult with legal counsel and staff about the assignment of a contract involving property in the Green Springs District, where discussion in an open session would adversely affect the bargaining position or negotiating strategy of the County.

The motion was seconded by Mr. Morgan and carried 5-0 among the members present.

RETURN TO OPEN MEETING:

Chairman Foster closed the closed session and immediately reconvened in regular open meeting at 7:03 pm.

CERTIFY:

Mr. Foster read the following statement prior to the vote to certify the closed session.

"Pam will now poll members to certify that, to the best of your knowledge, only public business matters lawfully exempted from the open meeting requirements under the Virginia Freedom of Information Act, and as identified in the motion for which the closed meeting was convened, were discussed, and considered by the Board. If any member believes that the Board varied from the purpose stated for the closed meeting, please state so and the reason prior to casting the vote." A roll call vote was requested with the following results:

Mr. Foster	YES
Mr. Smith	YES
Mr. Filer	ABSENT
Mr. Hardy	YES

Mr. Kies ABSENT
Mr. Morgan YES
Mr. Wilson YES

The motion was carried 5-0 among the members present.

Mr. Wilson made a motion to approve the reassignment of the Agreement for the Sale, Delivery, and use of Reclaimed Water from Spring Creek Land Development, LLC to Heritage Golf Group. The motion was seconded by Mr. Hardy and carried 5-0 among the member present.

C. Presentations

D. Citizen Information

E. Consent Agenda

5. APPROVAL OF THE MINUTES:

A. SEPTEMBER 13, 2023 – REGULAR BUSINESS MEETING

6. TREASURER'S REPORT:

A. O & M REPORT / CAPITAL REVENUE & EXPENDITURE REPORT – SEPTEMBER 2023
B. APPROVAL OF DISBURSEMENTS – SEPTEMBER 2023
C. CONSTRUCTION FUND – SEPTEMBER 2023

The Board reviewed the Consent Agenda, including the Treasurer's Report. Upon completion of the review, Mr. Hardy made a motion to approve the Consent Agenda and the Treasurer's Report. The motion was seconded by Mr. Morgan and carried 5-0 among the members present.

F. Old Business

7. UPDATE – JAMES RIVER WATER PROJECT

Justin Curtis with AquaLaw provided the following update on the two pending permits:

1) The Department of Environmental Quality Permit – The draft permit was approved by the James River Water Authority for advertising for public comments. The public comment period has closed since the September meeting and no adverse comments were received. Presently, JRWA is waiting for the administrative signature from DEQ management.

2) The Army Corps of Engineering Permit – The permit continues to experience delays; no forward progress has occurred since March 2023. AquaLaw is currently elevating inquiries up the chain of command. The Army Corps of Engineers has everything they need from JRWA, everything is in their hands.

Additionally, the cultural resources studies are moving along. Property owner acquisitions are moving along. Coordination with Dominion Energy is ongoing. The Conditional Use Permitting process in Fluvanna County is moving along on the intake and pump station located on the Rose Property. The Planning Commission will be considering the CUP in November and the Fluvanna County Board of Supervisors will be considering at their December meeting.

Faulconer Construction is in the process of ordering materials. Once the permits have all been received, they will be ready and understand that the water needs to be flowing.

The James River Water Authority went into closed session to consider a contract for the Phase III Archeological study work and contract discussions regarding the Rose Property, where the intake and pump station will be located.

8. NORTHEAST CREEK WATER TREATMENT PLANT

A. NECWTP SEDIMENTATION BASINS IMPROVEMENT (SLUDGE-VAC-SYSTEM UPDATE)

The bid has been cancelled and will be re-bid in the spring, with the intent of completing after the high-water use in the summer of 2024 ends and the higher spring of 2025 use begins.

B. CLEARWELL ROOF / BASEMENT FLOOR DRAINAGE

The contractor was onsite October 6-8, 2023, to resmooth the surface, improve seams, improve drainage, and reapply the finish.

C. NANOFILTRATION GRATING EVALUATION / UPGRADE TO ACCESS / PALLET JACK

The pallet-jack is expected to be delivered in late December 2023 to early January 2024.

D. 4th OPERATOR

An interview for a fourth operator was conducted on October 4, 2024. Other interviews will be scheduled in the coming weeks.

E. HIGH SERVICE PUMP #2 – ROSS VALVE RE-BUILD

Once the floor is complete, staff will rebuild the Ross valve on high service pump #2.

F. SURFACE WASH ARM REPLACEMENT

Water plant staff completed the surface wash arm replacement.

G. ANTHRACITE – SKIMMING OF EXHAUSTED MATERIAL AND REPLACEMENT OF NEW MATERIAL

Water Plant staff completed the skimming of exhausted anthracite and replaced it with new anthracite.

H. RAW WATER VALVE ACTUATOR

Atlas Electro declined the opportunity to provide a price for the raw water valve actuator replacement. East Coast Valves and Team, Inc. were onsite October 3rd and 4th to inspect the scope of work to be completed. Both are expected to provide quotes the week of October 9th.

I. SHOWER REPLACEMENT

When Paisley-Kerr installs the french-drain at Louisa Regional WWTP, they will be asked to stop by the Northeast Creek Water Treatment Plant to inspect and provide a quote to replace the shower, which is completely nonfunctioning.

J. DECKING ON GENERATOR

When Paisley-Kerr installs the french-drain at Louisa Regional WWTP, they will be asked to stop by the Northeast Creek Water Treatment Plant to inspect and provide a scope of work that can be completed for $10,000 toward the generator decking.

The Board was informed that NF Pump #2 failed. Greg Madison and James River Water Solution will be onsite to pull NF Pump #2 motor, rewire the new pump motor and put back into service on Thursday, October 12, 2023. The Dorsett communication, chart recorder replacement work is underway. Annual backflow inspections are due in October 2023.

9. ZION CROSSROADS WELL SYSTEM UPDATES

A. REPLACEMENT 50 HP PUMP/MOTOR (SPRING CREEK #3)

The pump/motor has arrived at Driller Services, staff need to pick it up.

B. SPRING CREEK #1 & #2

Work continues. The electrician needs to finalize the wiring and connecting the generator. No bids were received from the pipe fitter RFP. Staff is evaluating how to proceed with the interior piping work.

The Board was informed that Green Springs Well #1 was down. A broken wire was detected and repaired. Green Springs Well #1 has been placed back into service.

10. LOUISA REGIONAL WWTP

A. REGIONAL OPTIMIZATION AND PROCESS OPERATIONS STUDY

The final report has not been received with the requested modifications.

B. FRENCH DRAIN – TRENCH – PAISLEY-KERR

Once the grating is received the project will be scheduled.

C. LIGHTNING DAMAGE – FINAL INVOICES / AFFIDAVIT

All repairs have been made. The final invoices and affidavit have been sent to the insurance company.

D. BLOWER

Staff is working on obtaining costs to repair / replace the blower currently out of service.

E. WATER LEAK

The water line repair is on the list of items to be completed.

F. BEARING OUT IN DITCH #3

Staff have formulated a plan to replace the bearing. The work will be completed in the coming weeks.

G. GENERATOR CONTROL BOARD / TRANSFER SWITCH

Waiting on the control board / transfer switch. Expecting to receive the latter part of October, first part of November.

The Board was informed that one side of the UV disinfection system is down. Parts have been ordered and will be replaced once received.

11. ZION CROSSROADS WWTP

A. BIO-CAT SAMPLING

The sampling has been completed. The report has not been received.

B. TOXICITY TESTING

The consultant provided a technical memorandum to staff for review. When Nancy returns from vacation, a meeting will be held to discuss next steps. Metals are a concern (copper, zinc, aluminum).

C. LIGHTNING STRIKE

Work continues to make all repairs related to the July 2023 lightning strike.

12. Update – New Bridge WWTP

A. WELL #1

Approval has been granted from the Virginia Department of Health – Office of Drinking Water to bring Well #1 online. Royall Pump & Well has been given the authorization to proceed.

B. BLOWERS

The cost to replace blowers was in the $40,000 - $45,000 range. Staff have decided to proceed with floating aerators at a cost of $10,000 for improved treatment results. A more permanent solution will be implemented in the upgrade.

C. LINER REPAIRS

The liner repairs have been completed in lagoon #2. Staff are in the process of transferring flow into lagoon #2, enabling an evaluation of lagoon #1.

D. GRINDER PUMPS

The new grinder pumps failed in the pump station behind the restaurants. An old grinder pump was put back into service and appears to be keeping up with flow. One new pump was removed, because it was not functioning and the second was left in place, it was operating at a reduced performance level. This is a temporary solution until warranty issues can be resolved.

E. ELECTRICAL WORK (EXTENSION CORDS)

The electrician was onsite to evaluate the electrical needs of the New Bridge WWTP.

F. BOOSTER PUMP

The booster pump will be replaced the week of October 23, 2023. Notifications have been sent to all customers notifying them of the work and the possibility of pressure issues and/or discolored water. Additional notifications will be hand delivered the week of October 16, 2023.

G. COSTS TO DATE BREAKDOWN

The Board was provided the latest costs to date breakdown for the funds provided by the County of Louisa.

H. SIGN

Staff have reached out to Dominion Energy to determine any requirements they would impose on a sign to be installed identifying the location of the effluent line.

The Board was informed that Alum has been added to the treatment process to deal with what appears to be a slug discharged to the New Bridge WWTP. Additionally, staff have met with business owners to inform them of the Grease Policy they should be following to prevent grease buildups and the potential of sewage backing up into their businesses.

13. WATER SUPPLY EMERGENCY ORDINANCE

A. PROPOSED RATE SETTING NOTICE

The Board was provided the Public Hearing Notice for the Water Supply Emergency Ordinance. The Public Hearing will be held at the November 8, 2023 meeting to meet the advertising requirements.

14. LEAD SERVICE LINE INVENTORY

Work continues to be completed on the administrative work to meet the Lead Service Line Inventory requirement by October 2024.

15. NORTHEAST CREEK DAM (SOUTH ANNA DAM #22) AND BOWLERS MILL DAM (SOUTH ANNA #2)

A. APPLICATION FOR FUNDING (NORTHEAST CREEK DAM)

The application for funding for the Northeast Creek Dam has not been completed. The General Manager and the Business Operations Manager will be working on completing in the coming weeks.

B. SITE MOWING

The mowing of the Northeast Creek and Bowlers Mill Dams has been completed.

C. INSPECTIONS

The consultant has been notified of the mowing completion. Inspections have been scheduled for October 24, 2023.

D. LOW-LEVEL VALVES – EXERCISE

Exercising of the low-level valves for the Northeast Creek and Bowlers Mill Dams will be scheduled in the spring.

16. PROPOSAL – ADDITION OF WATER TO THE ST. FRANCIS PUMP STATION

A. TOWN OF MINERAL APPROVAL

The Town of Mineral has not provided approval in writing to date.

17. BUSINESS OFFICE

A. COPIER REPLACEMENT

The new copier has been delivered and is in service. The old copier is now in service at the Northeast Creek Water Treatment Plant.

B. OFFICE EXPANSION

The business office expansion is complete except for punch list items.

18. APPROVAL OF THE FY2022 ANNUAL AUDIT

The final FY2022 Annual Audit was provided to the Board members at the September 13, 2023 meeting. The delay in receiving the final audit for FY2022 is due to the auditing firm experiencing staffing shortages, putting off audits that are not required by regulation to have audits completed by a certain deadline.

Mr. Mike Moran provide the following summary, "We issued an unmodified (clean) audit opinion on the financials statements of the LCWA for the year ended June 30, 2022. In addition, we reported no material weaknesses or significant deficiencies in our Government Audit Standards report on Internal Control and on Compliance and Other Matters. The total net position of the LCWA was $25,359,574 at 6/30/22 compared to $25,277,502 at 6/30/21. Of that total net position $1,582,892 and $1,359,453 was unrestricted at 6/30/22 and 6/30/21 respectively. The total net position increased in FY22 by $82,072 compared to a small decrease in net position in FY21 of $4,546."

Upon completion of the review. Mr. Smith made a motion to approve the FY2023 Annual Audit. The motion was seconded by Mr. Hardy and carried 5-0 among the members present.

The Board directed the General Manager to solicit bids for auditing services for FY25.

19. UTILITY STANDARDS

The Town of Louisa has not provided their acceptance or decline in updating the Utility Standards as of the date of the meeting.

G. <u>New Business</u>

20. PROPOSAL FOR CONSULTING SERVICES FOR THE PERMIT REISSUANCE FOR ZION CROSSROADS WASTEWATER TREATMENT PLANT

The Board reviewed the proposal from Dewberry Engineering to assist with the application process for the permit reissuance for the Zion Crossroads Wastewater Treatment Plant.

Upon completion of the review, Mr. Smith made a motion to authorize the Dewberry proposal for assistance with the permit reissuance for the Zion Crossroads Wastewater Treatment Plant. The motion was seconded by Mr. Morgan and carried 5-0 among the members present.

21. PROPOSAL FOR WORK NEEDED ON THE SEPTAGE RECEIVING STATION AT LOUISA REGIONAL WASTEWATER TREATMENT PLANT

The Board reviewed the Field Service Trip Report for the Louisa Regional Wastewater Treatment Plant septage receiving station. One quote was for the replacement of the Cam Cutters in the amount of $12,136 and the second quote was for ethernet cable and touchscreen in the amount of $4,049.51.

Upon completion of the review, Mr. Hardy made a motion to authorize the proposed quotes for Cam Cutters, touchscreen and ethernet cable replacement. The motion was seconded by Mr. Wilson and carried 5-0 among the members present.

22. PROPOSAL FOR FLOW METER REPLACEMENT AT THE LAGOON PUMP STATION

The Board was informed that the flow meter at the Lagoon Pump Station has failed, and it has been determined that it cannot be repaired. Valley Automation provided a quote to replace the flow meter.

Upon completion of the review, Mr. Hardy made a motion to authorize the proposed quote to replace the flow meter at the Lagoon Pump Station. The motion was seconded by Mr. Morgan and carried 5-0 among the members present.

23. FY25 BUDGET PACKAGE

The Board reviewed the FY25 Budge Package from the County. For the Capital Improvement Budget, the General Manager recommends requesting $350,000 for the Northeast Creek Water Treatment Plant Sludge-Vac System, $250,000 for the upgrades at Bowler Mill Dam, $200,000 for reclaiming the James River Water Project right-of-way and $249,500 for the Louisa Regional Wastewater Treatment Plant upgrade to meet the Ammonia / Nitrogen limits. For the Operation Budget, the General Manager recommends requesting $275,000 for the County's share of operation for the Louisa Regional Wastewater Treatment Plant.

Upon completion of the review, Mr. Smith made a motion to authorize the General Manager to proceed with the recommendations for funding requests for FY25. The motion was seconded by Mr. Morgan and carried 5-0 among the members present.

24. PROPOSAL FOR FLOORING REPLACEMENT IN THE OLD BUSINESS OFFICE SPACE

The Board reviewed a proposal for replacing the flooring in the old Business Office space. The General Manager stated that at the very least, the old flooring needed to be professionally cleaned. The consensus of the Board was to have the flooring in the old office professionally cleaned and to proceed with other quotes to determine if a better quote could be received once Loudin Building Systems has completed their work.

H. Reports

I. General Manager's Report

● **September levels**: At the end of September the static well levels are up approximately 1.2 feet from the end of August 2023 levels. From September 2022 to September 2023, the well levels are up approximately 4.6 feet.

The smaller table shows static well levels located nearer to the production wells. These levels are up approximately 6.8 feet from the end of August 2023 levels. From September 2022 to September 2023, the well levels are up approximately 21.8 feet.

As of August 3, 2023, the Department of Environmental Quality Drought website is indicating normal conditions exist for groundwater, streamflow, precipitation, and reservoir levels.

● The current past-due listing is down to $5,302.12 from the past-due listing provided in the General Manager's Report, which reported the past-due balance of $39,996.03.

● Succession Planning – The General Manager asked for guidance from the Board on succession planning for the replacement once she retires.

● Spending Limit – The General Manager asked if the Board would object to increasing the spending limit of $5,000. Due to increased cost on all equipment and materials, workflow is beginning to be impacted by the $5,000 spending limit. A copy of a Resolution passed in 2014 will be sent to the Assistant County Attorney for guidance on revisions.

● The Water Board Bible – The General Manager shared a copy of The Water Board Bible and asked if the Board would be interested in a copy.

J. Committees

PERSONNEL COMMITTEE

The Personnel Committee is scheduled to meet on October 25, 2023, to review the first three sections of the Employee Handbook.

K. Short Notice Items

1) ZION CROSSROADS MIXER REPLACEMENT

The Board reviewed a proposal for a mixer replacement at Zion Crossroads. There are three mixers in need of replacement. The three mixers in question have been rebuilt twice and repaired several times. Staff is proposing the replacement of a mixer quarterly for the remainder of FY2024, for a total replacement of three mixers of the ten in operation.

Upon completion of the review, Mr. Wilson made a motion to authorize the replacement of three mixers at the Zion Crossroads Wastewater Treatment Plant one each quarter for the remainder of FY2024. The motion was seconded by Mr. Smith and carried 5-0 among the members present.

2) BANKING SERVICES

The Board discussed banking services and an unsolicited banking proposal from United Bank. Upon completion of the discussion, the Board directed the General Manger to advertise and RFP for banking services.

Next meeting date - The next business meeting is scheduled for November 8, 2023

L. Adjournment

THERE BEING NO FURTHER BUSINESS, Mr. Wilson made a motion to adjourn at 8:17 pm. The motion was seconded by Mr. Hardy and carried 5-0 among the members present.

BY ORDER OF:

Judson Foster
Chairman
LOUISA COUNTY WATER AUTHORITY